

Enactment.	Modification.	2ND SCH. —cont.
The Marriage and Registration Act, 1856 (19 & 20 Vict. c. 119).	Section three shall apply as if there were inserted after the words “the last-mentioned Act” the words “and in every case where the marriage is intended to be had and solemnized under the provisions of the Marriage (Naval, Military, and Air Force Chapels) Act, 1932, such notice shall, in addition to the said particulars, contain a declaration that one at least of the parties to such intended marriage is a qualified person within the meaning of the last-mentioned Act, and specify the party so qualified and the nature of his qualification.”	
The Marriage Act, 1898 (61 & 62 Vict. c. 58).	For references to the trustees or governing body of a building, there shall be substituted references to the Admiralty or any person authorised by them, in the case of a naval chapel, and references to a Secretary of State, or any person authorised by him, in the case of any other chapel.	

CHAPTER 32.

An Act to amend the Patents and Designs Acts,
1907 to 1928. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. For section four of the Patents and Designs Act, 1907 (hereinafter referred to as “the principal Act”), the following section shall be substituted :—

“4. An invention may, during the period between the date of an application for a patent

Provisional
protection.
7 Edw. 7.
c. 29.

therefor and the date of sealing a patent on that application, be used and published without prejudice to that patent, and such protection from the consequences of use and publication is in this Act referred to as provisional protection.

In this section the expression 'date of an application for a patent' means, as respects an application which is post-dated or ante-dated under this Act, the date to which the application is so post-dated or ante-dated, and means, as respects any other application, the date on which it is actually made."

Amend-
ments of s. 7
of principal
Act and pro-
vision as to
anticipation
in docu-
ments other
than British
specifica-
tions.

2.—(1) In the proviso to subsection (4) of section seven of the principal Act there shall be inserted after the word "claimed" where that word occurs for the second time the words "or wholly and specifically described,"; and after that subsection the following subsection shall be inserted:—

"(5) If it is within the knowledge of the comptroller that the invention claimed has been made available to the public by publication in the United Kingdom, before the date which the patent applied for would bear if granted, in any document (other than a United Kingdom specification or a specification describing the invention for the purposes of an application for protection made in any country outside the United Kingdom more than fifty years next before that date, or any abridgment of, or extract from, any such specification published under the authority of the comptroller or of the Government of any country outside the United Kingdom), the provisions of subsections (2), (3) and (4) of this section shall apply in relation to a claim or description of the invention in that document in like manner as those provisions apply in relation to a description thereof in a prior specification to which the investigation has extended."

(2) In subsection (5) of the said section, for the words "law officer" there shall be substituted the words "Appeal Tribunal."

3. In section twenty-five of the principal Act the following subsections shall be substituted for subsection (2) :—

Grounds for
revocation
of patent.

“(2) A patent may be revoked upon any of the following grounds,—

- (a) that the invention was the subject of a valid prior grant;
- (b) that the true and first inventor was not the applicant or one of the applicants for the patent;
- (c) that the patent was obtained in fraud of rights of the person applying for the order or of any person under or through whom he claims;
- (d) that the invention is not a manner of new manufacture the subject of letters patent and grant of privilege within section six of the Statute of Monopolies;
- (e) subject as in this subsection provided, that the invention is not new;
- (f) that the invention is obvious and does not involve any inventive step having regard to what was known or used prior to the date of the patent;
- (g) that the invention is not useful;
- (h) that the complete specification does not sufficiently and fairly describe and ascertain the nature of the invention and the manner in which the invention is to be performed;
- (i) that the complete specification does not sufficiently and clearly ascertain the scope of the monopoly claimed;
- (j) that the complete specification does not disclose the best method of performance of the invention known to the applicant for the patent at the time when the specification was left at the Patent Office;
- (k) that the patent was obtained on a false suggestion or representation;

21 Jas. 1. c. 3.

- (*l*) that the invention claimed in the complete specification is not the same as that contained in the provisional specification, and that the invention claimed, so far as it is not contained in the provisional specification was not new at the date when the complete specification was filed, or the true and first inventor was not the applicant, or one of the applicants, for the patent, or, in the case of an application made under section ninety-one of this Act, that the invention claimed in the complete specification is not the same as that for which protection has been applied for in the foreign state, or part of His Majesty's dominions outside the United Kingdom;
- (*m*) that the primary or intended use or exercise of the invention is contrary to law;
- (*n*) that the patentee has contravened or has not complied with the conditions contained in the patent;
- (*o*) that prior to the date of the patent the invention was secretly worked on a commercial scale and not merely by way of reasonable trial or experiment in the United Kingdom by the patentee or others, not being a Government department or the agents or contractors of, or other person authorised in that behalf by, a Government department;
- (*p*) that in the case of inventions relating to substances prepared or produced by chemical processes or intended for food or medicine the specification includes claims which under section thirty-eight A of this Act cannot lawfully be made; or

upon any other ground upon which a patent might, immediately before the first day of January one thousand eight hundred and eighty-four, have been repealed by scire facias :

Provided that this subsection shall have effect, as respects the ground of revocation

specified in paragraph (e) thereof, subject to the provisions of subsection (1) of section fifteen, subsection (12) of section thirty, section forty-one and section forty-five of this Act.

(3) Every ground on which a patent may be revoked shall be available as a ground of defence in an action for infringement of a patent."

4. In section twenty-seven of the principal Act there shall be inserted :

Provisions
as to unfair
exercise of
process
patent.

(a) In subsection (2), after paragraph (e), the following paragraph :—

"(f) If it is shown that the existence of the patent, being a patent for an invention relating to a process involving the use of materials not protected by the patent or for an invention relating to a substance produced by such a process, has been utilised by the patentee so as unfairly to prejudice in the United Kingdom the manufacture, use or sale of any such materials ;"

and

(b) In subsection (3), after paragraph (c), the following paragraph :

"(d) If the comptroller is satisfied that the monopoly rights have been abused in the circumstances specified in paragraph (f) of the last foregoing subsection, he may order the grant of licences to the applicant and to such of his customers and containing such terms as the comptroller may think expedient."

5.—(1) In section thirty-two of the principal Act the words "if entitled to present a petition to the court for the revocation of the patent" and the word "such" shall be omitted.

Power of
court in
infringe-
ment
action as
regards
relief in
respect of
particular
claims in
patents.

(2) For section thirty-two A of the principal Act, the following section shall be substituted :—

"32A. Where the court in any action for infringement of a patent finds that any claim in the specification, in respect of which infringement is alleged, is valid, but that any other claim

therein is invalid, then, notwithstanding anything in section twenty-three of this Act—

- (a) if the patentee furnishes proof to the satisfaction of the court that the invalid claim was framed in good faith and with reasonable skill and knowledge, or if the patent is dated before the commencement of the Patents and Designs Act, 1932, the court shall, subject to its discretion as to costs and as to the date from which damages should be reckoned, and to such terms as to amendment of the specification as it may deem desirable, grant relief in respect of any valid claim which is infringed without regard to the invalidity of any other claim in the specification and in exercising such discretion the court may take into consideration the conduct of the parties in inserting the invalid claim in the specification or permitting that claim to remain there;
- (b) if the patentee does not furnish proof as aforesaid, and the patent is dated after the commencement of the Patents and Designs Act, 1932, the court shall not grant any relief by way of damages or costs, but may grant such other relief in respect of any valid claim which is infringed as to the court seems just, and may impose such terms as to amendment of the specification as a condition of granting any such relief as it may deem desirable;
- (c) if a counter-claim for revocation of the patent has been made in the action on the ground of the invalidity of any claim in the specification, the court may postpone the operation of any order made thereon during such time as may be requisite for enabling the patentee to effect any amendment of the specification pursuant to terms imposed upon him and may attach any such other condition to any order to be made on the counter-claim as the court may deem desirable."

6. For section thirty-six of the principal Act there shall be substituted the following section :—

“36.—(1) Where any person, by circulars, advertisements or otherwise, threatens any person with an action for infringement of patent or other like proceedings, then, whether the person making the threats is or is not entitled to or interested in a patent or an application for a patent, any person aggrieved thereby may bring an action against him, and may obtain a declaration to the effect that such threats are unjustifiable and an injunction against the continuance of such threats and may recover such damage, if any, as he has sustained thereby, unless the person making the threats proves that the acts in respect of which the proceedings are threatened constitute or, if done, would constitute an infringement of a patent in respect of a claim in the specification which is not shown by the plaintiff to be invalid or an infringement of rights arising from the acceptance of a complete specification in respect of a claim therein which is not shown by the plaintiff to be capable of being successfully opposed.

Remedy in case of groundless threats of legal proceedings.

(2) The defendant in any such action as aforesaid may apply, by way of a counter-claim in the action, for any relief to which he would be entitled in a separate action in respect of any infringement by the plaintiff of the patent to which the threats relate.”

7. In section thirty-seven of the principal Act for the words “without their consent” there shall be substituted the words “otherwise than with their consent “or in accordance with directions given under this “section”; and at the end of the section the following subsections shall be inserted :—

“(2) The comptroller may, upon application for relief under this subsection being made to him in the prescribed manner by any one or more of joint patentees, and after giving to the other joint patentees an opportunity of being heard, give such directions in accordance with the application as to the sale or lease of the patent for the invention, or as to the grant of licences in

Power to give direction as to development of patents jointly owned.

respect thereof, or otherwise as to the use and development of the rights thereunder as appear to him to be just and expedient, and it shall be the duty of all the joint patentees to give effect to any directions so given.

(3) If any person who is under obligation to give effect to any such directions as aforesaid fails to execute any instrument or to do any act or thing requisite for giving effect thereto within fourteen days after being requested in writing so to do by any of the joint patentees, the comptroller may, by direction given under the last foregoing subsection, empower any person to execute that instrument or to do that act or thing in the name and on behalf of the person in default.

(4) Nothing in this section shall be taken to authorise the use of an invention or the giving of any directions in such manner as to prejudice or affect the mutual rights or obligations of trustees or the personal representatives of a deceased person, or any rights or obligations arising out of those relationships.

(5) An order of the comptroller giving any directions or refusing an application made under this section shall be subject to appeal to the court."

Subject
matter of
patents for
chemical
products
and sub-
stances
intended for
food or
medicine.

8. In subsection (1) of section thirty-eight A of the principal Act, the word "special" shall be omitted; after the word "manufacture" there shall be inserted the word "particularly"; for the word "claimed" there shall be substituted the word "ascertained"; after the word "equivalents" there shall be inserted the words "Provided that in relation to a substance intended for food or medicine a mere admixture resulting only in the aggregation of the known properties of the ingredients of that substance shall not be deemed to be a method or process of manufacture"; the words "Provided that" shall be omitted; and the following words to the end of the subsection shall be read as a separate subsection.

9. At the end of section fifty of the principal Act the following subsection shall be inserted :—

Amendment
of s. 50 of
principal
Act.

“(2) Where the proprietor of a registered design applies for the registration in the same class of goods of a design consisting of the registered design with modifications or variations not sufficient to alter the character or substantially to affect the identity thereof, the application shall not be refused, nor shall the registration of that other design be invalidated—

- (a) on the ground that it is not a new or original design, by reason only of the registration of the registered design; or
- (b) on the ground that it has been previously published in the United Kingdom, by reason only that the registered design has been applied to the goods in respect of which it is registered :

Provided that the period of copyright conferred by the registration of that other design shall not extend beyond the expiration of the original and any extended period of copyright in the registered design.”

10. In subsection (1) of section fifty-six of the principal Act the words “not being less than two years from the registration of the design” shall be omitted.

Period of
secrecy as
regards
designs.

11. In section seventy-five of the principal Act, for the words “The comptroller may refuse” there shall be substituted the words “If any application “is made to the comptroller to grant a patent for “an invention which is so obviously contrary to “well-established natural laws that the application “is frivolous or”; after the word “morality” there shall be inserted the words “the comptroller “may refuse the application, or may, in the case of “an invention any particular use of which would, “in his opinion, be contrary to law, require as a “condition of granting a patent the insertion in the “specification of such disclaimer as respects that “particular use of the invention or any such other “reference to the illegality thereof as he thinks fit”; and for the words “law officer” there shall be substituted the words “Appeal Tribunal.”

Amend-
ments of
s. 75 of
principal
Act as to
frivolous
applications
and appli-
cations for
patents for
illegal in-
ventions.

Tribunal for
appeals
from the
comptroller.

12. The following section shall be inserted after section ninety-two of the principal Act:—

“92A.—(1) For the purpose of hearing appeals from decisions of the comptroller, which, by virtue of this Act, are subject to an appeal to the Appeal Tribunal, there shall be constituted a tribunal (in this Act referred to as the “Appeal Tribunal”) to consist of a judge of the High Court to be nominated by the Lord Chancellor.

(2) The expenses of the Appeal Tribunal shall be defrayed and the fees to be taken therein may be fixed as if the Tribunal were a court of the High Court, but subject as aforesaid appeals to the Tribunal shall not be deemed to be proceedings in the High Court.

(3) The Appeal Tribunal may—

(a) examine witnesses on oath and administer oaths for that purpose;

(b) make rules regulating appeals to the Tribunal and the practice and proceedings before the Tribunal under this Act; and

(c) in any proceedings under this Act by order award to any party such costs as the Tribunal consider reasonable and direct how and by what parties they are to be paid and any such order may be made a rule of court;

so however that, as respects rights of audience and the awarding of costs, the like practice shall be observed as, before the commencement of the *Patents and Designs Act, 1932*, was observed in the hearing of appeals by the law officer.

(4) The Appeal Tribunal may, if it thinks fit, obtain the assistance of an expert, who shall be paid such remuneration as the Tribunal, with the consent of the Treasury, may determine.”

Minor
amend-
ments of
principal
Act.

13. The amendments specified in the second column of the Schedule to this Act, which relate to minor details, shall be made in the provisions of the principal Act specified in the first column of that Schedule.

14.—(1) This Act shall, except where otherwise expressly provided, apply to patents granted and applications for and specifications relating to patents made and deposited, and designs registered and applications for registration of designs made, before as well as after the passing of this Act.

Construc-
tion and
printing.

(2) Where by this Act any enactments or words are directed to be added to or omitted from the principal Act or to be substituted for any other enactments or words in the principal Act, copies of the principal Act printed under the authority of His Majesty's Stationery Office after such direction takes effect may be printed with the enactments or words added or omitted or substituted for other enactments or words, as such direction requires, with the sections, subsections and paragraphs thereof numbered in accordance with any such directions and with any consequential renumbering of the subsections and paragraphs; and the principal Act shall be construed as if it had, at the time at which such direction takes effect, been made with such addition, omission or substitution.

(3) References in this Act to the principal Act shall, unless the context otherwise requires, be construed as references to the principal Act as amended by the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, and the Patents and Designs (Convention) Act, 1928, and references in any other Act or instrument to the principal Act shall, unless the context otherwise requires, be construed as references to the principal Act as amended by those Acts and this Act.

4 & 5 Geo. 5.
c. 18.
9 & 10
Geo. 5. c. 80.
18 & 19
Geo. 5. c. 3.

15.—(1) This Act may be cited as the Patents and Designs Act, 1932, and the Patents and Designs Acts, 1907 to 1928, and this Act may be cited together as the Patents and Designs Acts, 1907 to 1932.

Short title
and com-
mencement.

(2) This Act shall come into operation on the first day of November, nineteen hundred and thirty-two.

Section 13.

SCHEDULE.

MINOR AMENDMENTS OF PRINCIPAL ACT.

Section Amended.	Nature of Amendment.
Section 2.	In subsection (5) for the words from the second "invention," to the end of the section there shall be substituted the words "then, subject to the prescribed rules, typical samples and specimens shall, if in any particular case the comptroller considers it desirable so to require, be furnished before the acceptance of the complete specification, and the applicant shall be at liberty, where he so desires, and subject to the prescribed rules, so to furnish any typical samples and specimens, unless the comptroller in any particular case considers that it is undesirable that any should be received."
Section 3.	In subsection (1) the words "Comptroller-General of Patents, Designs and Trade Marks, hereinafter referred to as the" shall be omitted. In subsection (2) after the word "described" there shall be inserted the words "or as respects a complete specification that the nature of the invention or the manner in which it is to be performed is not therein particularly described and ascertained,"; for the words "bear date as from the time when" there shall be substituted the words "be deemed to have been made on the date on which". After subsection (2) there shall be inserted the following subsections :— " (3) The comptroller may, where the application was accompanied by a specification purporting to be a complete specification, if the applicant so requests, treat the specification as a provisional specification and proceed with the application accordingly. " (4) The comptroller may, where the applicant before acceptance of the complete specification so requests and upon payment by the applicant of the prescribed fee, direct that the application shall be deemed to have been made

Section Amended.	Nature of Amendment.
	on such date within a period of six months running from the date when the application was actually made, as the applicant may request." In subsection (3) for the words from the beginning of the subsection to the words "law officer" there shall be substituted the words "The applicant may appeal from any decision of the comptroller under this section to the Appeal Tribunal,".
Section 5.	In subsection (1) for the word "nine" there shall be substituted the word "twelve".
Section 6.	In subsection (2) for the words "the complete specification has" there shall be substituted the words "the nature of the invention or the manner in which it is to be performed is not particularly described and ascertained in the complete specification or that the complete specification or drawings have". In subsection (3) there shall be substituted for paragraph (b) the following paragraph— "(b) (with the consent of the applicant) cancel the provisional specification and direct that the application shall be deemed to have been made on the date at which the complete specification was left and proceed with the application accordingly;". In the proviso to subsection (3) there shall be substituted for the words "treated as an application for that invention," the words "direct that that application shall be deemed to have been". In subsection (4) for the words "law officer" there shall be substituted the words "Appeal Tribunal." Subsection (5) shall be omitted.
Section 7.	In subsection (1), after the word "Kingdom," there shall be inserted the words "and dated". In subsection (2), after the word "invention," there shall be inserted the word "claimed".
Section 8.	In subsection (1) after the word "application" there shall be inserted the words "made in the United Kingdom"; and there shall be substituted for the words "be of" the word "bear".

Section
Amended.

Nature of Amendment.

In subsection (4) there shall be substituted for the words "law officer" the words "Appeal Tribunal."

After section eight of the principal Act the following section shall be inserted :—

" 8A. Unless a complete specification is accepted within eighteen months from the date of an application the application shall become void unless—

(a) an appeal under any of the foregoing provisions of this Act has been lodged in respect of the application; or

(b) in the case of an application for a patent of addition an appeal under any of the foregoing provisions of this Act has been lodged in respect either of that application or of the application for the original patent; or

(c) the time within which such an appeal as aforesaid may be lodged has not expired :

Provided that where an application is made for an extension of time for the acceptance of a complete specification, the comptroller shall, on payment of the prescribed fee, grant an extension of time to the extent applied for, but not exceeding three months."

Section 9. After the word "drawings" there shall be inserted the words "samples and specimens".

Section 10. For the words "until a patent for the invention has been granted to him" there shall be substituted the words "until the patent has been sealed."

Section 11. In subsection (1), after the word "specification" where that word first occurs, there shall be inserted the words "or within such further period, not exceeding one month, as the comptroller may on an application made to him within the said period of two months and subject to payment of the prescribed fee, allow"; in paragraph (a) after the word "invention" there shall be inserted the words "or any part thereof"; in paragraph (b), after the word

Section
Amended.

Nature of Amendment.

“ Kingdom ” where that word first occurs there shall be inserted the words “ and dated ”; there shall be substituted for the word “ British ” the words “ United Kingdom ”; and after the word “ specification ” where that word occurs for the last time, there shall be inserted the words, “ or a “ specification describing the invention for the “ purpose of an application for protection made “ in any country outside the United Kingdom “ more than fifty years next before such “ date, or any abridgment of, or extract from “ any such specification published under the “ authority of the comptroller or of the Govern- “ ment of any country outside the United “ Kingdom ”; in paragraph (bb) there shall be substituted for the word “ British ” the words “ United Kingdom ”; in paragraph (c) for the words “ sufficiently or ” there shall be substituted the words “ sufficiently and ”; in paragraph (d) after the word “ invention ” where that word occurs for the second time, there shall be inserted the word “ either ”; there shall be substituted for the words “ leaving of the provisional specification ” the words “ date of the application ”; and after the word “ specification ” where that word occurs for the last time, there shall be inserted the words “ or has been made available to the public by “ publication in any document published in the “ United Kingdom in that interval ”; in paragraph (e), for the words “ British possession ” where those words first occur, there shall be substituted the words “ any part of His Majesty’s dominions outside the United Kingdom ”; after the word “ invention ” where that word occurs for the second time, there shall be inserted the word “ either ”; for the words “ British possession and the leaving ” there shall be substituted the words “ part of His Majesty’s dominions outside the United Kingdom and the date ”; and after the word “ Kingdom ” there shall be inserted the words “ or has been made available to the public “ by publication in any document published in the “ United Kingdom in that interval.”

In subsection (2) the words “ on the expiration of those two months ” shall be omitted.

Section
Amended.

Nature of Amendment.

For subsection (3) the following subsection shall be substituted—

“(3) The decision of the comptroller shall be subject to appeal to the Appeal Tribunal who shall, if required, hear the applicant and the opponent, if the opponent is, in the opinion of the Tribunal, a person entitled to be heard in opposition to the grant of the patent and shall decide the case.”

Section 12. In subsection (1) there shall be substituted for the proviso the following words:—

“Provided that—

(a) where an applicant under a joint application has died, the patent may, with the consent of his personal representative, be granted to the survivors or survivor of the joint applicants;

(b) where an applicant has agreed in writing to assign the patent when granted or, in the case of a joint application, his interest in the patent when granted, the patent may, upon proof of the agreement to the satisfaction of the comptroller, be granted to the assignee or, in the case of an assignment by a joint applicant of his interest to an assignee not being the other joint applicant, to the assignee jointly with the other applicant or his assignee”.

After subsection (1) there shall be inserted the following subsections—

“(2) Where disputes arise between joint applicants or their assigns as to proceeding with an application, the comptroller, if satisfied that one or more of such persons ought to be allowed to proceed alone, may allow him or them to proceed with the application and may grant a patent to him or them, so, however, that all parties interested shall be entitled to be heard before the comptroller.

(3) An appeal shall lie from the decision of the comptroller under this section to the Appeal Tribunal”.

In subsection (2) there shall be substituted for the word “eighteen” in both places where that word

Section
Amended.

Nature of Amendment.

occurs, the word "twenty-one"; for paragraph (b) there shall be substituted the following paragraph:—

"(b) where the sealing of a patent is delayed by an appeal to the Appeal Tribunal or by any proceedings taken for obtaining the decision of the comptroller under the provisions of subsection (2) of this section, or by opposition to the grant of the patent, that patent and any patent of addition the sealing whereof is delayed in consequence of the delay in the sealing of that patent may be sealed at such time as in the first-mentioned case the Tribunal, or in either of the two last-mentioned cases the comptroller, may direct"

In paragraph (c) after the word "death" there shall be inserted the words "or at such later time as the comptroller may think fit"; and after paragraph (c) the following paragraph shall be inserted:—

"(d) where it is proved to the satisfaction of the comptroller that hardship would arise in connection with the prosecution by an applicant of an application for a patent in any country outside the United Kingdom unless the maximum period which would otherwise be allowed for sealing the patent is extended, that period may be extended subject to payment of the prescribed fee to such an extent as appears to the comptroller to be necessary in order to prevent that hardship arising."

In paragraph (d) the words "and this provision" and the subsequent words to the end of the section shall be omitted.

Section 13. The words "and sealed" shall be omitted.

Section 15. In subsection (1) there shall be substituted for the word "to" where that word first occurs, the words "on the application of".

In subsection (2) the proviso shall be omitted; and at the end of that subsection there shall be inserted the following subsections:—

"(3) Where in proceedings before the comptroller under this Act for opposition to the grant of a patent or for revocation of a patent,

Section
Amended.

Nature of Amendment.

the comptroller has found that an invention was in part obtained from the opponent or the applicant for revocation and has required that the specification be amended by exclusion of that part of the invention, he may, on the application of the true inventor made in accordance with the provisions of this Act, grant to him a patent for that excluded part of the invention bearing the date of the opposed application or the date of the patent sought to be revoked as the case may be.

“(4) No action shall be brought for any infringement of a patent granted under the provisions of either of the last two foregoing subsections committed before the date of sealing the patent.”

Section 16. In subsection (2) for the word “therein” there shall be substituted the words “in the complete specification.”

Section 18. For the proviso to subsection (1) there shall be substituted the following proviso:—

“Provided that the court may allow such a petition to be presented at such time, not being later than the time limited for the expiration of the patent, as the court may in its discretion think fit.”

Section 19. In subsection (2) for the words “a patent (hereinafter referred to as a patent of addition)” there shall be substituted the words “a patent of addition”.

After subsection (2) there shall be inserted the following subsection:—

“(3) Where an invention, being an improvement in or modification of an original invention, is the subject of an independent patent and the patentee in respect of the independent patent, being also the patentee in respect of the patent for the original invention, so requests, the comptroller may make an order for the revocation of the independent patent and a patent of addition may be granted in respect of the improvement or modification bearing the same date as the date of the independent patent so revoked.”

In subsection (3), for the words “so long as the” “patent for the original invention remains in

Section Amended.	Nature of Amendment.
	“ force and no longer ” there shall be substituted the words “ during the term limited in the “ patent for the original invention or until the “ previous cesser thereof and no longer, but may “ be extended under the last foregoing section “ for any period for which the patent for the “ original invention is extended thereunder,”.
Section 20. For subsection (5) the following subsections shall be substituted :—	“ (5) After the expiration of the prescribed period the comptroller shall hear the case and issue an order either restoring the patent or dismissing the application : “ Provided that the comptroller may, if he thinks fit, as a condition of issuing an order under this section restoring a patent require that an entry shall be made in the register of patents in respect of any document or instrument in respect of which the provisions of this Act as to entries in the register have not been complied with. “ (6) In every order under this section restoring a patent such provision as may be prescribed shall be inserted for the protection of persons who may have availed themselves of the subject matter of the patent after the patent had been announced as void in the Official Journal (Patents).”
Section 21. In subsection (1), for the words “ an applicant or a patentee may at any time ” there shall be substituted the words “ an applicant at any time after acceptance of his complete specification or a patentee at any time may ”.	
For subsection (5) there shall be substituted the following subsection :—	“ (5) The decision of the comptroller in either case shall be subject to an appeal, where the person making the request to amend is a patentee, to the court, and, where the person making the request to amend is an applicant for a patent, to the Appeal Tribunal and the court or the Tribunal, as the case may be, shall, if required, hear the person making the request to amend, and, where notice of opposition

Section
Amended.

Nature of Amendment.

has been given the person giving that notice, if he is in the opinion of the court or of the Tribunal, as the case may be, entitled to be heard in opposition to the request, and, where there is no opposition the comptroller, and may make an order determining whether and subject to what conditions (if any) the amendment ought to be allowed."

Section 24. In subsection (2) the word "Illustrated" shall be omitted.

In subsection (3) the words from "Any order" to the end of the subsection shall be omitted.

After subsection (3) there shall be inserted the following subsection :—

"(4) Where a patent of addition is in force any request made under this section for an indorsement either of the original patent or of the patent of addition shall be treated as a request for the indorsement of both patents, and if refused as respects the one shall be refused as respects the other also, and where a patent of addition is granted in respect of a patent which is indorsed under this section the patent of addition shall also be so indorsed."

In subsection (4) the word "Illustrated" shall be omitted.

In subsection (5), the words from the beginning of the subsection to the word "licence" and the words "after due notice" shall be omitted; at the end of the subsection the following proviso shall be inserted :—

"Provided that before acting on any application for the cancellation of an indorsement, the comptroller shall advertise the application in the prescribed manner and shall satisfy himself that there is no existing licence or that all existing licensees consent to the application."

At the end of the section there shall be inserted the following subsections :—

"(7) Any person may within the prescribed time and in the prescribed manner, give notice at the Patent Office of opposition to

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	an application for the cancellation of an indorsement, and where any such notice is given the comptroller shall, after giving notice of the opposition to the applicant and after giving to the applicant and to the opponent an opportunity of being heard, decide on the case. (8) Any decision of the comptroller under this section shall be subject to an appeal to the court."
Section 26.	In subsection (1), for the words "two years from the date of the patent" there shall be substituted the words "twelve months from the date of sealing the patent".
Section 27.	In subsection (1) for the words "the grant of the patent" there shall be substituted the words "sealing a patent". In the proviso to paragraph (a) of subsection (2) for the word "grant" there shall be substituted the word "sealing"; and for the word "adjourn" there shall be substituted the words "make an order adjourning". In the proviso to paragraph (d) of subsection (3) for the words "British possession" there shall be substituted the words "part of His Majesty's dominions outside the United Kingdom". In subsection (8) the word "Illustrated" shall be omitted. In subsection (11) for the words "law officer" there shall be substituted the words "Attorney-General".
Section 27A.	After the word "patentee" there shall be inserted the words "or proprietor of a registered design as the case may be"; and the section as so amended shall be re-numbered 83A and shall be inserted in the principal Act after section 83 instead of in its present position.
Section 30.	In subsection (1) after the word "War" there shall be inserted the words "or Secretary of State for Air". In subsection (5) the words "or of the law officer" shall be omitted.

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Section 33.	The words " year and " shall be omitted.
Section 40.	Shall be omitted.
Section 41.	For section forty-one, the following section shall be substituted : " 41.—(1) An invention covered by a patent shall not be deemed to have been anticipated by reason only of its being made available to the public by publication in the United Kingdom :— (a) in a specification left pursuant to an application made in the United Kingdom and dated not less than fifty years before the date of the patent, or (b) in a specification describing the invention for the purpose of an application for protection in any country outside the United Kingdom made not less than 50 years before that date, or (c) in any abridgment of or extract from any such specification published under the authority of the comptroller or of the Government of any country outside the United Kingdom, or (d) in a provisional specification of any date not followed by a complete specification. (2) A patent shall not be held to be invalid by reason only of the invention in respect of which the patent was granted or any part thereof having been published prior to the date of the patent, if the patentee proves to the satisfaction of the court that the publication was made without the knowledge and consent of the true inventor, and that the matter published was derived or obtained from the true inventor, and if the true inventor learnt of the publication before the date of his application for the patent that he applied for and obtained protection for the invention with all reasonable diligence after learning of the publication : Provided that the protection afforded by this subsection shall not extend to a patentee who has or whose predecessors in title (which

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expression shall include the applicant for the patent) have commercially worked the invention in the United Kingdom otherwise than for the purpose of reasonable trial of the invention prior to the date of the application for the patent."

Section 43. In subsection (2) there shall be substituted for the word "him" the words "the deceased".

After section forty-four of the principal Act, the following section shall be inserted:—

"44A. A person making a request to the comptroller in the prescribed manner as respects any patent specified in the request or as respects any application for a patent so specified, for information to be furnished to him by the comptroller of any such matters as may be prescribed affecting that patent or application, shall be entitled, subject to payment of the prescribed fees, to have information furnished to him accordingly."

Section 46. In subsection (1) there shall be substituted for the words "an illustrated" the word "a"; and after the word "law" there shall be inserted the words "reports of decisions of the comptroller, of the law officer, or of the Appeal Tribunal".

Section 49. In subsection (3) the words "except where the refusal is given on a ground mentioned in section seventy-five of this Act" shall be omitted; and for the word "court" in both places where that word occurs there shall be substituted the words "Appeal Tribunal".

Section 53. In subsection (2) the words "within the prescribed time" shall be omitted; and after the word "years" where that word first occurs there shall be inserted the words "or within such further time (not exceeding three months) as the comptroller may allow".

In subsection (3) the words "within the prescribed time" shall be omitted; and after the word "years" where that word first occurs there shall be inserted the words "or within such further time (not exceeding three months) as the comptroller may allow".

Section 54. In subsection (1) paragraph (a) shall be omitted.

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Section 58.	The following subsection shall be substituted for subsection (1):— “(1) At any time after the registration of a design any person interested may apply to the comptroller— (a) for the cancellation of the registration of the design on the ground that the design has been published in the United Kingdom prior to the date of the registration; (b) for the grant of a compulsory licence on the ground that the design is applied by manufacture to any article in a country outside the United Kingdom and is not so applied by manufacture in the United Kingdom to such an extent as is reasonable in the circumstances of the case and the comptroller may make such order on the application as he considers just: Provided that the comptroller shall not make any order under paragraph (b) of this subsection which is at variance with any treaty, convention, arrangement, or engagement with any country outside the United Kingdom.”
Section 61.	In subsection (2) for the word “court” there shall be substituted the words “Appeal Tribunal”. After the word “apply” where that word first occurs there shall be inserted the words “with the necessary modifications”; and the words “with the substitution” and the following words to the end of the section shall be omitted.
Section 68.	At the end of the section there shall be inserted the words “where either (a) the complete specification has been accepted; or (b) the complete specification has been published and the application has become void.”
Section 69.	In subsection (1), after the word “void,” there shall be inserted the words “the application”; and after the word “and” there shall be inserted the word “the”; and after the word “drawings” there shall be inserted the words “samples and specimens.”
Section 70.	In paragraph (c) for the words “clerical error” there shall be substituted the words “error in an application for the registration of or”; and at

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the end of the section the following words shall be inserted :—

“ Provided that where a request is made for a correction under paragraph (a) of this section and it appears to the comptroller that the correction would materially alter the meaning or scope of the document to which the request relates, and ought not to be made without notice to persons affected thereby, he shall require a notice of the nature of the proposed correction to be advertised in the prescribed manner, and any person may within the prescribed time and in the prescribed manner give notice at the Patent Office of opposition to the request and, where any such notice is given, the comptroller shall, after giving notice of the opposition to the applicant and after giving to the applicant and to the opponent an opportunity of being heard, decide on the case.”

Section 71. In subsection (1) after the word “comptroller” where that word first occurs, there shall be inserted the words “in the prescribed manner” and the words “in the prescribed manner” shall be omitted.

In subsection (2) after the word “comptroller” where that word first occurs, there shall be inserted the words “in the prescribed manner” and the words “in the prescribed manner” shall be omitted.

Section 73A. In subsection (2), after the word “patent” there shall be inserted the words “or for the”
“cancellation of the registration of a design or
“for the grant of a compulsory licence in relation
“to a patent or to a registered design”; and for the words “law officer” in both places where those words occur, there shall be substituted the words “Appeal Tribunal”.

Section 74. Shall be omitted.

Section 76. The words “all general rules made in that year under or for the purposes of this Act and” shall be omitted.

Section 77. For subsection (2), the following subsection shall be substituted :—

“(2) The comptroller shall in respect of discovery and production of documents and,

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where any evidence is taken *viva voce*, in respect of requiring the attendance of witnesses and taking evidence on oath, be in the same position in all respects as an official referee of the Supreme Court."

Section 80. Shall be omitted.

Section 83. For the word "lunacy" there shall be substituted the words "unsoundness of mind".

Section 84. Subsection (2) shall be omitted.

In subsection (3), after the word "pounds" there shall be inserted the words "or in the case of a "second or subsequent conviction to a fine not exceeding fifty pounds"; and after that subsection the following subsection shall be inserted—

"(4) Notwithstanding anything in any enactment prescribing the time within which proceedings may be brought before a court of summary jurisdiction, proceedings for an offence under this section may be commenced at any time within twelve months from the date on which the alleged offence was committed."

Section 85. In subsection (1), after the words "whose name "has been erased from the register of patent "agents" there shall be inserted the words "or "(during the term of his suspension) any person "who has been suspended from acting as a "patent agent,".

Section 86. In subsection (3) for the words "official journal to be issued by the comptroller," there shall be substituted the words "Official Journal (Patents)."

Section 91. In the proviso to subsection (1) there shall be substituted in paragraph (a) for the word "made" the word "dated,".

After subsection (1) the following subsection shall be inserted :—

"(2) Where the same applicant has made two or more applications for protection of inventions in any foreign state to which the provisions of this section apply, and the comptroller is of opinion that the whole of the inventions in respect of which the applications were made are such as to constitute a single invention and may properly be included in one

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patent, he may, if a separate application dated within twelve months from the date of the earliest of the foreign applications is made in respect of each of the foreign applications, accept one complete specification in respect of the whole of those inventions and grant a single patent thereon. The patent shall bear the date of the earliest of the foreign applications, but in considering the validity thereof and in determining other questions under this Act, the court or the comptroller, as the case may be, shall have regard to the respective dates of the foreign applications relating to the several matters claimed in the specification."

In paragraph (a) of subsection (3) for the words "the twelve" there shall be substituted the word "eighteen"; after the word "state" there shall be inserted the words "or in the case of applications made in accordance with the provisions of subsection (2) of this section from the earliest of the applications for protection in the foreign state"; and after the word "drawings" there shall be inserted the words "samples and specimens."

In subsection (5), for the words "British possession" there shall be substituted the words "part of His Majesty's dominions outside the United Kingdom"; and for the words "that possession" there shall be substituted the words "that part of His Majesty's dominions."

Section 92. In subsection (1) for the word "Ireland" there shall be substituted the words "Northern Ireland."

Section 93. The definition of "Law officer" shall be omitted; For the definition of "British possession" there shall be substituted the following definition " 'His Majesty's dominions outside the United Kingdom' includes any territory under His Majesty's protection, or in respect of which a mandate on behalf of the League of Nations is being exercised by His Majesty, but does not include the Isle of Man or the Channel Islands."

In the definition of "Invention" the words in brackets shall be omitted.

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At the end of the section, the following words shall be inserted :—

“ ‘The comptroller’ means the Comptroller General of Patents, Designs and Trade Marks.”

“ ‘Date of application’ has the meaning assigned to it in section four of this Act.”

“ ‘Patent of addition’ means a patent granted under the provisions of section nineteen of this Act.”

“ ‘The Appeal Tribunal’ means the tribunal constituted under the provisions of section 92A of this Act.”

“ ‘The Statute of Monopolies’ means the Act of the twenty-first year of the reign of King James the First chapter three, intituled ‘An Act concerning monopolies and dispensations with penal laws and the forfeiture thereof.’ ”

Section 95. For the word “Ireland” in every place where that word occurs there shall be substituted the words “Northern Ireland.”

First Schedule. For the figure “£3 0s. 0d.” there shall be substituted the figure “£4 0s. 0d.” and for the figure “£4 0s. 0d.” in both places where that figure occurs there shall be substituted the figure “£5 0s. 0d.”

CHAPTER 33.

An Act to amend section forty of the Rating and Valuation Act, 1925. [12th July 1932.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Subsection (1) of section forty of the Rating and Valuation Act, 1925 (which provides that, in every case where a new valuation list is to be made for any area,

Amend-
ment of
15 & 16
Geo. 5. c. 90.
s. 40.